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Whatcom County, WA

Request of: SOUTH DOUGLAS LLC

WHEN RECORDED RETURN TO:

Bradley D. Swanson
Belcher Swanson Law Firm, PLLC
900 Dupont Street
Bellingham, WA 98225-3105

Document Title:	Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 3
Related Document #:	2090102034
Declarant:	South Douglas, LLC, a Washington limited liability company
Legal Description:	Ptn Tract A South Douglas Div 2, as rec AF# 2090102033
Assessor's Tax Parcel ID#:	390230 021456 0000

**DECLARATION OF COVENANTS, CONDITIONS, RESERVATIONS AND
RESTRICTIONS OF THE SOUTH DOUGLAS LONG PLAT, DIV. 3**

A. RECITALS

1. The undersigned Declarant is the Owner in fee simple of the following described real property located in the County of Whatcom, State of Washington:

Lots 1-11, inclusive, South Douglas Long Plat, Division 3, as recorded under Whatcom County Auditor's File No. 2150261460 records of Whatcom County, Washington, as a portion of Tract A, South Douglas Long Plat, Div. 2, according to the plat thereof, recorded October 9, 2012, under Whatcom County Auditor's File No. 2121003585.

(hereinafter referred to as "Division 3").

2. The real property identified above is referred to as "Subsequent Phases", as defined at paragraph 1.14 of the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 1 recorded at Whatcom County Auditor's file number 2090102034. Consistent with Paragraph 1.14 of that document, Declarant intends to reaffirm that Division 3 is subject to the terms of the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 1 and further reaffirm the inclusion of Owners of Lots within Division 3 into the Douglas Plats Community Association.

DECLARATION OF COVENANTS, CONDITIONS, RESERVATIONS AND
RESTRICTIONS OF THE SOUTH DOUGLAS LONG PLAT, DIV. 3 - 1

B. DECLARATION

The Declarant hereby certifies and declares that the Declaration of Covenants, Conditions, Reservations and Restrictions of the South Douglas Long Plat, Div. 1, dated January 8, 2009 and recorded at Whatcom County Auditor's file number 2090102034 (the "Division 1 CCRs"), shall inure and be binding upon the respective Owners of each Lot or Tract within Division 3, and the Declarant further declares that all of the property within Division 3 described herein is held and shall be held, conveyed, encumbered, leased, rented, used, occupied and improved subject to those covenants, conditions, reservations and restrictions for the purpose of enhancing and protecting the value, desirability and attractiveness of Division 3 and every part thereof. All of those covenants, conditions, reservations and restrictions shall run with the land and shall be binding upon all parties having or acquiring any right, title or interest in Division 3 or any part thereof.

1. INCORPORATION OF TERMS

Declarant, by this reference, hereby incorporates and adopts all terms contained within the Division 1 CCRs as though set out here in full and as hereafter may be amended. All such rights, restrictions, obligations, liens and so forth shall apply in full force to any Lot or Tract within Division 3.

2. COMMUNITY ASSOCIATION

Declarant further hereby affirms that the Owners of each Lot within Division 3 shall be included within the membership of the Douglas Plats Community Association and subject to the rights and obligations attendant thereto.

3. SOUTH CHURCH ROAD LOTS AND 24' ACCESS & UTILITY EASEMENT

The South Douglas Long Plat, Div. 1 and the Division 1 CCRs established the 24' Access & Utility Easement for use by Lots within (1) the South Douglas Long Plat, Div. 1 and (2) Subsequent Phases. Division 3 widens the 24' Access & Utility Easement to thirty feet (30'). Despite this change in width, the Access & Utility Easement within this Division 3 shall be governed by the terms and conditions for the 24' Access & Utility Easement set forth in the South Douglas Long Plat, Div. 1 and the Division 1 CCRs.

Declarant hereby affirms that all the Lots within this Division 3 are South Church Road Lots, as defined at paragraph 3.15 of the Division 1 CCRs. As such, pursuant to paragraphs 6.5.1 and 6.12 of the Division 1 CCRs, the Lots contained within this Division 3 shall be responsible, along with other South Church Road Lots (from other phases of the South Church Long Plat), for maintenance and operation of the 24' Access & Utility Easement (as defined at paragraph 1.16 of the Division 1 CCRs).

4. **PARAGRAPH HEADINGS**

The paragraph headings in this Declaration are for convenience only and shall not be considered in construing this Declaration.

5. **SEVERABILITY**

In the event that any provision hereof is deemed by proper judicial decree to be invalid, then the remaining portion of this Declaration shall in no way be affected.

DATED this 12 day of February 2015.

SOUTH DOUGLAS, LLC

By: William Kramer
WILLIAM KRAMER, Member

STATE OF WASHINGTON)
)ss.
COUNTY OF WHATCOM)

On this 12 day of FEBRUARY 2015 before me personally appeared WILLIAM KRAMER, to me known to be the member of the limited liability company that executed the within and foregoing instrument to be the free and voluntary act and deed of said limited liability company for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal the day and year first above written.



Sergio Ruiz
Printed Name: Sergio Ruiz
Notary Public in and for the State of Washington,
residing at LYNDEN
My Commission Expires: JULY 27, 2018

DECLARATION OF COVENANTS, CONDITIONS, RESERVATIONS AND
RESTRICTIONS OF THE SOUTH DOUGLAS LONG PLAT, DIV. 3 - 3